

House File 623

H-1297

1 Amend House File 623 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 STATEWIDE PRESCHOOL PROGRAM

6 Section 1. Section 256.163, subsection 1, paragraph c, Code
7 2025, is amended to read as follows:

8 c. Preschool programs at school districts approved to
9 participate in the preschool program, or at community-based
10 providers approved to directly participate in the preschool
11 program, under chapter 256C.

12 Sec. 2. Section 256C.1, subsection 1, Code 2025, is amended
13 to read as follows:

14 1. *"Approved local program"* means a school district's
15 program or community-based provider's program for four-year-old
16 children approved by the department of education to provide
17 ~~high-quality~~ high-quality preschool instruction.

18 Sec. 3. Section 256C.1, Code 2025, is amended by adding the
19 following new subsection:

20 NEW SUBSECTION. 1A. *"Community-based provider approved*
21 *to directly participate in the preschool program"* means a
22 community-based provider that meets the community-based
23 provider requirements under section 256C.3 and has been
24 approved by the department to directly participate in the
25 preschool program. *"Community-based provider approved to*
26 *directly participate in the preschool program"* does not mean a
27 community-based provider that partners with a school district's
28 approved local program.

29 Sec. 4. Section 256C.3, subsection 1, paragraph b, Code
30 2025, is amended to read as follows:

31 b. If space and funding are available, including funding
32 from another school district account or fund from which
33 preschool program expenditures are authorized by law, a school
34 district approved to participate in the preschool program or
35 community-based provider approved to directly participate in

1 the preschool program may enroll and pay the cost of attendance
2 for a younger or older child in the preschool program; however,
3 the child shall not be counted for state funding purposes.

4 Sec. 5. Section 256C.3, subsection 2, paragraph a,
5 subparagraph (1), Code 2025, is amended to read as follows:

6 (1) The individual is either employed by or under contract
7 with the school district, or with the community-based provider
8 approved to directly participate in the preschool program, that
9 is implementing the program.

10 Sec. 6. Section 256C.3, subsection 3, unnumbered paragraph
11 1, Code 2025, is amended to read as follows:

12 The state board shall adopt rules to further define the
13 following preschool program requirements which shall be used
14 to determine whether or not a local program implemented by a
15 school district approved to implement the preschool program or
16 a community-based provider directly approved to implement the
17 preschool program qualifies as an approved local program:

18 Sec. 7. Section 256C.3, subsection 3, paragraph h, Code
19 2025, is amended to read as follows:

20 *h.* Provision for ensuring that children receiving care from
21 other child care arrangements can participate in the preschool
22 program with minimal disruption due to transportation and
23 movement from one site to another. The children participating
24 in the preschool program may be transported by the school
25 district or community provider to activities associated with
26 the program along with other children.

27 Sec. 8. Section 256C.3, Code 2025, is amended by adding the
28 following new subsection:

29 NEW SUBSECTION. 4A. *Community-based provider*

30 *requirements.* The state board shall adopt rules to further
31 define the following requirements of community-based providers
32 approved to directly participate in the preschool program in
33 implementing the preschool program:

34 *a.* Methods of demonstrating readiness to implement
35 high-quality instruction in the local program shall be

1 identified.

2 **b.** A community-based provider shall participate in data
3 collection and performance measurement processes and reporting
4 as defined by rule.

5 **c.** Professional development for community-based provider
6 preschool teachers shall be addressed in the community-based
7 provider's professional development plan.

8 Sec. 9. Section 256C.3, subsection 5, paragraphs a, b, and
9 d, Code 2025, are amended to read as follows:

10 **a.** The department shall implement an application and
11 selection process for school district participation and
12 community-based provider participation in the preschool program
13 that includes but is not limited to the enrollment requirements
14 provided under [section 256C.4](#).

15 **b.** The department shall track the progress of
16 students served by a school district preschool program or
17 community-based provider preschool program and the students'
18 performance in elementary and secondary education.

19 **d.** The state board, in collaboration with the department,
20 shall ensure that the administrative rules adopted to support
21 the preschool program emphasize that children's access to
22 the program is voluntary, that the preschool foundation aid
23 provided to a school district or a community-based provider is
24 provided based upon the enrollment of eligible students in the
25 school district's or community-based provider's local program
26 regardless of whether an eligible student is a resident of the
27 school district, and that agreements entered into by a school
28 district for the provision of programming in settings other
29 than the school district's facilities are between the school
30 district and the private provider.

31 Sec. 10. Section 256C.4, subsection 1, Code 2025, is amended
32 to read as follows:

33 1. ~~General~~ State funding for school district approved to
34 participate in the preschool program.

35 **a.** State funding provided under the preschool program to

HF 623.1749 (1) 91

(amending this HF 623 to CONFORM to SF 445)

jda/jh

3/24

1 school districts shall be based upon the enrollment of eligible
2 students in the preschool programming provided by a school
3 district approved to participate in the preschool program.

4 *b.* A school district approved to participate in the
5 preschool program may authorize expenditures for the district's
6 preschool programming from any of the revenue sources available
7 to the district from the sources listed in [chapter 298A](#),
8 provided the expenditures are within the uses permitted for the
9 revenue source. In addition, the use of the revenue source
10 for preschool or prekindergarten programming must have been
11 approved prior to any expenditure from the revenue source for
12 the district's approved local program.

13 *c.* Funding provided under the preschool program is intended
14 to supplement, not supplant, existing public funding for
15 preschool programming.

16 *d.* Preschool foundation aid funding shall not be commingled
17 with the other state aid payments made under [section 257.16](#)
18 to a school district and shall be accounted for by the local
19 school district separately from the other state aid payments.
20 Preschool foundation aid payments made to school districts are
21 miscellaneous income for purposes of [chapter 257](#). A school
22 district shall maintain a separate listing within its budget
23 for preschool foundation aid payments received and expenditures
24 made. A school district shall certify to the department of
25 education that preschool foundation aid funding received by
26 the school district was used to supplement, not supplant,
27 moneys otherwise received and used by the school district for
28 preschool programming.

29 *e.* Preschool foundation aid funding shall not be used for
30 the costs of constructing a facility in connection with an
31 approved local program. Preschool foundation aid funding may
32 be used by approved local programs and community providers
33 for any purpose determined by the board of directors of the
34 school district to meet standards for high-quality preschool
35 instruction and for purposes that directly or indirectly

HF 623.1749 (1) 91

(amending this HF 623 to CONFORM to SF 445)

jda/jh

4/24

1 benefit students enrolled in the approved local program,
2 including but not limited to professional development for
3 preschool teachers, instructional equipment and supplies,
4 material and equipment designed to develop pupils' large and
5 small motor skills, translation services, playground equipment
6 and repair costs, food and beverages used by children in the
7 approved local program, safety equipment, facility rental fees,
8 and for other direct costs that enhance the approved local
9 program, including by contracting with community partners for
10 any such services. Preschool foundation aid funding may be
11 used by approved local programs for the costs of transportation
12 involving children participating in the preschool program.
13 The costs of transporting other children associated with the
14 preschool program or transported as provided in section 256C.3,
15 subsection 3, paragraph "h", may be prorated by the school
16 district. Preschool foundation aid funding received by an
17 approved local program that remains unexpended and unobligated
18 at the end of a fiscal year beginning on or after July 1, 2017,
19 shall be used to build the approved local program's preschool
20 program capacity in the next succeeding fiscal year excluding
21 that portion of such unexpended and unobligated funding that
22 the school district authorizes for transfer for deposit in the
23 school district's flexibility account established under section
24 298A.2, subsection 2, if the statutory requirements for the use
25 of such funding are met. For purposes of determining whether a
26 school district has authority to transfer preschool foundation
27 aid funding for deposit in the school district's flexibility
28 account established under [section 298A.2, subsection 2](#), the
29 school district must have provided preschool programming
30 during the fiscal year for which funding remains unexpended
31 and unobligated to all eligible students for whom a timely
32 application for enrollment was submitted.

33 *f.* The receipt of funding by a school district for the
34 purposes of [this chapter](#), the need for additional funding
35 for the purposes of [this chapter](#), or the enrollment count of

1 eligible students under [this chapter](#) shall not be considered
2 to be unusual circumstances, create an unusual need for
3 additional funds, or qualify under any other circumstances that
4 may be used by the school budget review committee to grant
5 supplemental aid to or establish a modified supplemental amount
6 for a school district under [section 257.31](#).

7 *g.* For the fiscal year beginning July 1, 2015, and each
8 succeeding fiscal year, of the amount of preschool foundation
9 aid received by a school district for a fiscal year in
10 accordance with [section 257.16](#), not more than five percent may
11 be used by the school district for administering the district's
12 approved local program. Outreach activities and rent for
13 facilities not owned by the school district are permissive uses
14 of the administrative funds.

15 *h.* For the fiscal year beginning July 1, 2015, and each
16 succeeding fiscal year, of the amount of preschool foundation
17 aid received by a school district for a fiscal year in
18 accordance with [section 257.16](#), not less than ninety-five
19 percent of the per pupil amount shall be passed through to
20 a community-based provider for each pupil enrolled in the
21 district's approved local program. For the fiscal year
22 beginning July 1, 2015, and each succeeding fiscal year, not
23 more than ten percent of the amount of preschool foundation aid
24 passed through to a community-based provider may be used by the
25 community-based provider for administrative costs. The costs
26 of outreach activities and rent for facilities not owned by
27 the school district are permissive administrative costs. The
28 costs of transportation involving children participating in the
29 preschool program and other children may be prorated.

30 Sec. 11. Section 256C.4, Code 2025, is amended by adding the
31 following new subsection:

32 NEW SUBSECTION. 1A. *State preschool funding for*
33 *community-based providers approved to directly participate in the*
34 *preschool program.*

35 *a.* State preschool funding shall not be used for the costs

1 of constructing a facility in connection with an approved
2 local program. Preschool foundation aid funding may be used
3 by community-based providers for any purpose determined by the
4 community-based provider to meet standards for high-quality
5 preschool instruction and for purposes that directly or
6 indirectly benefit students enrolled in the approved local
7 program, including but not limited to professional development
8 for preschool teachers, instructional equipment and supplies,
9 material and equipment designed to develop pupils' large and
10 small motor skills, translation services, playground equipment
11 and repair costs, food and beverages used by children in the
12 approved local program, safety equipment, facility rental fees,
13 and for other direct costs that enhance the approved local
14 program, including by contracting with other community partners
15 for any such services. State preschool funding may be used
16 by approved local programs for the costs of transportation
17 involving children participating in the preschool program.
18 Preschool foundation aid funding received by a community-based
19 provider approved to directly participate in the preschool
20 program that remains unexpended and unobligated at the end
21 of a fiscal year shall be used to build the community-based
22 provider's capacity in the next succeeding fiscal year.

23 *b.* For the fiscal year beginning July 1, 2025, and each
24 succeeding fiscal year, of the amount of state preschool
25 funding received by a community-based provider approved
26 to directly participate in the preschool program for a
27 fiscal year, not more than five percent may be used by the
28 community-based provider for administering the approved local
29 program. Outreach activities and rent for facilities not owned
30 by the community-based provider are permissive uses of the
31 administrative funds.

32 Sec. 12. Section 256C.4, subsection 2, paragraph a, Code
33 2025, is amended to read as follows:

34 *a.* To be included as an eligible student in the enrollment
35 count of the preschool programming provided by a school

HF 623.1749 (1) 91

(amending this HF 623 to CONFORM to SF 445)

jda/jh

7/24

1 district approved to participate in the preschool program or
2 a community-based provider approved to directly participate
3 in the preschool program, a child must be four years of age
4 by September 15 in the base year and attending the school
5 district's or community-based provider's approved local
6 program.

7 Sec. 13. Section 256C.5, subsection 1, paragraphs c and d,
8 Code 2025, are amended to read as follows:

9 c. "*Preschool budget enrollment*" means the figure that is
10 equal to fifty percent of the actual enrollment of eligible
11 students in the preschool programming provided by a school
12 district approved to participate in the preschool program or a
13 community-based provider approved to directly participate in
14 the preschool program on October 1 of the base year, or the
15 first Monday in October if October 1 falls on a Saturday or
16 Sunday.

17 d. "*Preschool foundation aid*" means the product of the
18 regular program state cost per pupil for the budget year
19 multiplied by the school district's preschool budget enrollment
20 or the community-based provider's preschool budget enrollment.

21 Sec. 14. Section 256C.5, Code 2025, is amended by adding the
22 following new subsection:

23 NEW SUBSECTION. 2A. *Preschool foundation aid community-based*
24 *provider amount.* For the initial school year for which a
25 community-based provider approved to directly participate in
26 the preschool program receives that approval and implements
27 the preschool program, the preschool foundation aid payable
28 to the community-based provider is the product of the regular
29 program state cost per pupil for the school year multiplied
30 by fifty percent of the community-based provider's eligible
31 student enrollment on the date in the school year determined
32 by rule. For budget years subsequent to the initial year
33 for which a community-based provider approved to directly
34 participate in the preschool program receives that initial
35 approval and implements the preschool program, the preschool

1 foundation aid is the same as calculated pursuant to subsection
2 1. The funding for the preschool foundation aid payable to the
3 community-based provider shall be paid from the appropriation
4 made in section 257.16. Continuation of a community-based
5 provider's participation in the preschool program for a second
6 or subsequent budget year is subject to the approval of the
7 department based upon the community-based provider's compliance
8 with accountability provisions and the department's on-site
9 review of the community-based provider's implementation of the
10 preschool program.

11 Sec. 15. Section 256C.5, subsection 3, Code 2025, is amended
12 to read as follows:

13 3. *Aid payments.*

14 a. Preschool foundation aid shall be paid as part of the
15 state aid payments made to school districts in accordance with
16 section 257.16.

17 b. Preschool foundation aid paid directly to community-based
18 providers shall be paid to the community-based provider in
19 monthly installments beginning on September 15 of a budget year
20 and ending on or about June 15 of the budget year as determined
21 by the department of management, taking into consideration the
22 relative budget and cash position of the state resources.

23 Sec. 16. EMERGENCY RULES. The state board of education may
24 adopt emergency rules under section 17A.4, subsection 3, and
25 section 17A.5, subsection 2, paragraph "b", to implement the
26 provisions of this division of this Act and the rules shall
27 be effective immediately upon filing unless a later date is
28 specified in the rules. Any rules adopted in accordance with
29 this section shall also be published as a notice of intended
30 action as provided in section 17A.4.

31 DIVISION II
32 CHILD DEVELOPMENT COORDINATING COUNCIL AND PROGRAMS FOR AT-RISK
33 CHILDREN

34 Sec. 17. Section 256.9, subsection 28, Code 2025, is amended
35 to read as follows:

1 28. ~~Develop, in conjunction with the child development~~
2 ~~coordinating council or other similar agency,~~ child-to-staff
3 ratio recommendations and standards for at-risk programs based
4 on national literature and test results and Iowa longitudinal
5 test results.

6 Sec. 18. Section 256.9, subsection 31, paragraph b, Code
7 2025, is amended to read as follows:

8 b. Standards and materials developed shall include materials
9 which employ developmentally appropriate practices and
10 incorporate substantial parental involvement. The materials
11 and standards shall include alternative teaching approaches
12 including collaborative teaching and alternative dispute
13 resolution training. ~~The department shall consult with the~~
14 ~~child development coordinating council, the department of~~
15 ~~health and human services, the state board of regents center~~
16 ~~for early developmental education, the area education agencies,~~
17 ~~the department of human development and family studies in the~~
18 ~~college of human sciences at Iowa state university of science~~
19 ~~and technology, the early childhood elementary division of the~~
20 ~~college of education at the university of Iowa, and the college~~
21 ~~of education at the university of northern Iowa, in developing~~
22 ~~these standards and materials.~~

23 Sec. 19. Section 256.163, subsection 1, paragraph d, Code
24 2025, is amended to read as follows:

25 d. Shared visions programs receiving grants from the ~~child~~
26 ~~development coordinating council~~ department of education under
27 section 256A.3.

28 Sec. 20. Section 256A.3, Code 2025, is amended to read as
29 follows:

30 **256A.3 Duties of ~~council~~ the department of education.**

31 The ~~child development coordinating council~~ department of
32 education shall promote the provision of child development
33 services to at-risk three-year-old and four-year-old children,
34 and shall do all of the following:

35 1. Develop a definition of at-risk children for the purposes

1 of ~~this chapter~~. The definition shall include income, family
2 structure, the child's level of development, and availability
3 or accessibility for the child of a head start or other child
4 care program as criteria.

5 ~~2. Establish minimum guidelines for comprehensive early~~
6 ~~child development services for at-risk three-year and~~
7 ~~four-year-old children. The guidelines shall reflect~~
8 ~~current research findings on the necessary components for~~
9 ~~cost-effective child development services.~~

10 ~~3. At least biennially, develop an inventory of child~~
11 ~~development services provided to at-risk three-year and~~
12 ~~four-year-old children in this state and identify the number of~~
13 ~~children receiving and not receiving these services, the types~~
14 ~~of programs under which the services are received, the degree~~
15 ~~to which each program meets the council's minimum guidelines~~
16 ~~for a comprehensive program, and the reasons children not~~
17 ~~receiving the services are not being served. The council is~~
18 ~~not required to conduct independent research in developing the~~
19 ~~inventory, but shall determine information needs necessary to~~
20 ~~provide a more complete inventory.~~

21 ~~4.~~ 2. Subject to the availability of funds appropriated
22 or otherwise available for the purpose of providing child
23 development services, award grants for programs that provide
24 new or additional child development services to at-risk
25 children.

26 *a.* In awarding program grants to an agency or individual,
27 the ~~council~~ department of education shall consider the
28 following:

29 (1) The quality of the staff and staff background in child
30 development services.

31 (2) The degree to which the program is or will be integrated
32 with existing community resources and has the support of the
33 local community.

34 (3) The ability of the program to provide for child care
35 in addition to child development services for families needing

1 full-day child care.

2 (4) A staff-to-children ratio ~~within the guidelines~~
3 ~~established under subsection 2,~~ but not less than one staff
4 member per eight children.

5 (5) The degree to which the program involves and works with
6 the parents, and includes home visits, instruction for parents
7 on parenting skills, on enhancement of skills in providing for
8 their children's learning and development, and the physical,
9 mental, and emotional development of children, and experiential
10 education.

11 (6) The manner in which health, medical, dental, and
12 nutrition services are incorporated into the program.

13 (7) The degree to which the program complements existing
14 programs and services for at-risk three-year-old and
15 four-year-old children available in the area, including other
16 child care services, services provided through the school
17 district, and services available through area education
18 agencies.

19 ~~(8) The degree to which the program can be monitored and~~
20 ~~evaluated to determine its ability to meet its goals.~~

21 ~~(9)~~ (8) The provision of transportation or other auxiliary
22 services that may be necessary for families to participate in
23 the program.

24 ~~(10)~~ (9) The provision of staff training and development,
25 and staff compensation sufficient to assure continuity.

26 b. Program grants funded under [this subsection](#) may integrate
27 children not meeting at-risk criteria into the program and
28 shall establish a fee for participation in the program in the
29 manner provided in [section 279.49](#), but grant funds shall not be
30 used to pay the costs for those children.

31 c. Programs awarded grants under [this subsection](#) shall meet
32 the national association for the education of young children
33 program standards and accreditation criteria, the Iowa quality
34 preschool program standards and criteria, or other approved
35 program standards as determined by the department of education.

1 Programs awarded grants prior to July 1, 2015, shall continue
2 to be evaluated and assessed based on eligibility and award
3 criteria established under rules adopted by the state board of
4 education pursuant to [section 279.51](#) prior to June 30, 2015.

5 ~~5.~~ 3. Encourage the submission of grant requests from all
6 potential providers of ~~child development services statewide~~
7 voluntary preschool programming and shall be flexible in
8 evaluating grants, recognizing that different types of programs
9 may be suitable for different locations in the state.

10 a. Requests for grants must contain a procedure for
11 evaluating the effectiveness of the program and accounting
12 procedures for monitoring the expenditure of grant moneys.

13 b. The ~~council~~ department of education shall seek to
14 use performance-based measures to evaluate programs. Not
15 more than five percent of any state funds appropriated for
16 child development purposes may be used for administration and
17 evaluation.

18 ~~6.~~ 4. Annually, submit recommendations to the governor
19 and the general assembly on the need for investment in child
20 development services in the state.

21 ~~7.~~ 5. Subject to a decision by the ~~council~~ department of
22 education to initiate the programs, develop criteria for and
23 award grants under [section 279.51, subsection 2.](#)

24 ~~8. Encourage the establishment of programs that will~~
25 ~~enhance the skills of parents in parenting and in providing for~~
26 ~~the learning and development of their children.~~

27 Sec. 21. Section 256A.4, subsection 2, paragraph g, Code
28 2025, is amended to read as follows:

29 g. Role modeling and mentoring techniques for families of
30 children who meet one or more of the criteria established for
31 the definition of at-risk children by the ~~child development~~
32 ~~coordinating council~~ department of education.

33 Sec. 22. Section 256A.5, subsection 2, Code 2025, is amended
34 by striking the subsection.

35 Sec. 23. Section 256C.3, subsection 3, paragraph e, Code

1 2025, is amended to read as follows:

2 e. Collaboration with participating families, early care
3 providers, and community partners including but not limited to
4 early childhood Iowa area boards, head start programs, shared
5 visions and other programs provided under the auspices of the
6 ~~child development coordinating council~~ department, licensed
7 child care centers, registered child development homes, area
8 education agencies, child care resource and referral services
9 provided under [section 237A.26](#), early childhood special
10 education programs, services funded by Tit. I of the federal
11 Elementary and Secondary Education Act of 1965, and family
12 support programs.

13 Sec. 24. Section 256C.3, subsection 4, paragraph a, Code
14 2025, is amended to read as follows:

15 a. Methods of demonstrating community readiness to
16 implement high-quality instruction in a local program
17 shall be identified. The potential provider shall submit
18 a collaborative program proposal that demonstrates the
19 involvement of multiple community stakeholders including
20 but not limited to, and only as applicable, parents, the
21 school district, accredited nonpublic schools and faith-based
22 representatives, the area education agency, the early childhood
23 Iowa area board, representatives of business, head start
24 programs, shared visions and other programs provided under
25 the auspices of the ~~child development coordinating council~~
26 department, center-based and home-based providers of child
27 care services, human services, public health, and economic
28 development programs. The methods may include but are not
29 limited to a school district providing evidence of a public
30 hearing on the proposed programming and written documentation
31 of collaboration agreements between the school district,
32 existing community providers, and other community stakeholders
33 addressing operational procedures and other critical measures.

34 Sec. 25. Section 262.71, subsection 8, Code 2025, is amended
35 by striking the subsection.

1 Sec. 26. Section 273.2, subsection 6, unnumbered paragraph
2 1, Code 2025, is amended to read as follows:

3 The area education agency board may provide for the
4 following programs and services to local school districts, and
5 at the request of local school districts to providers of child
6 development services who have received grants under chapter
7 256A from the ~~child development coordinating council~~ department
8 of education, within the limits of funds available:

9 Sec. 27. Section 279.51, subsection 1, Code 2025, is amended
10 to read as follows:

11 1. There is appropriated from the general fund of the state
12 to the department of education for the fiscal year beginning
13 July 1, ~~2007~~ 2025, and each succeeding fiscal year, the sum of
14 ~~twelve million six hundred six thousand one hundred ninety-six~~
15 ten million five hundred twenty-four thousand three hundred
16 eighty-nine dollars. The moneys shall be allocated as follows:

17 a. ~~Two hundred seventy-five thousand eight hundred~~
18 ~~sixty-four~~ Two hundred twenty-nine thousand two hundred
19 sixty-two dollars of the funds appropriated shall be allocated
20 to the area education agencies to assist school districts in
21 developing program plans and budgets under this section and to
22 assist school districts and child development programs under
23 section 256A.3 in meeting other responsibilities in early
24 childhood education.

25 b. For the fiscal year beginning July 1, ~~2007~~ 2025, and
26 for each succeeding fiscal year, ~~eight million five hundred~~
27 ~~thirty-six thousand seven hundred forty~~ ten million twelve
28 thousand five hundred twenty-seven dollars of the funds
29 appropriated shall be allocated to the ~~child development~~
30 ~~coordinating council established in~~ chapter 256A department
31 of education for the purposes set out in subsection 2, ~~of~~
32 ~~this section~~ and section 256A.3, and to be used as grants to
33 early childhood programs that demonstrate the greatest need
34 for programs for at-risk children and the families of at-risk
35 children.

1 ~~c. For the fiscal year beginning July 1, 2007, and for~~
2 ~~each fiscal year thereafter, three million five hundred~~
3 ~~ten thousand nine hundred ninety-two dollars of the funds~~
4 ~~appropriated shall be allocated as grants to school districts~~
5 ~~that have elementary schools that demonstrate the greatest~~
6 ~~need for programs for at-risk students with preference given~~
7 ~~to innovative programs for the early elementary school years.~~
8 ~~School districts receiving grants under this paragraph shall~~
9 ~~at a minimum provide activities and materials designed to~~
10 ~~encourage children's self-esteem, provide role modeling and~~
11 ~~mentoring techniques in social competence and social skills,~~
12 ~~and discourage inappropriate drug use. The grant allocations~~
13 ~~made in this paragraph may be renewed for additional periods of~~
14 ~~time. Of the amount allocated under this paragraph for each~~
15 ~~fiscal year, seventy-five thousand dollars shall be allocated~~
16 ~~to school districts which have an actual student population of~~
17 ~~ten thousand or less and have an actual non-English speaking~~
18 ~~student population which represents greater than five percent~~
19 ~~of the total actual student population for grants to elementary~~
20 ~~schools in those districts.~~

21 ~~d. c.~~ Notwithstanding [section 256A.3, subsection 5 3](#), of
22 the amount appropriated in [this subsection](#) for the fiscal year
23 beginning July 1, 2007 [2025](#), and for each succeeding fiscal
24 year, up to two hundred eighty-two thousand six hundred dollars
25 may be used for administrative costs.

26 Sec. 28. Section 279.51, subsection 2, paragraph a,
27 unnumbered paragraph 1, Code 2025, is amended to read as
28 follows:

29 Funds allocated under [subsection 1](#), paragraph "b", shall be
30 used by the ~~child development coordinating council~~ department
31 of education for the following:

32 Sec. 29. Section 279.51, subsection 2, paragraph a,
33 subparagraphs (1) and (2), Code 2025, are amended to read as
34 follows:

35 (1) To continue funding for programs previously funded by

HF 623.1749 (1) 91

(amending this HF 623 to CONFORM to SF 445)

1 grants awarded under [section 256A.3](#) and to provide additional
2 grants under [section 256A.3](#). The ~~council~~ department shall seek
3 to provide grants on the basis of the location within the state
4 of children meeting at-risk definitions.

5 (2) At the discretion of the ~~child development coordinating~~
6 ~~council~~ department of education, award grants for the
7 following:

8 (a) ~~To~~ to school districts to establish programs for
9 three-year-old, and four-year-old, ~~and five-year-old~~ at-risk
10 children.

11 (b) ~~To provide grants to provide educational support~~
12 ~~services to parents of at-risk children age birth through three~~
13 ~~years.~~

14 Sec. 30. Section 279.51, subsection 2, paragraph b, Code
15 2025, is amended to read as follows:

16 b. A grantee under [this subsection](#) may direct the use of
17 moneys received to serve any qualifying child ranging in age
18 from three years old to ~~five~~ four years old, regardless of the
19 age of population indicated on the grant request in its initial
20 year of application. A grantee is encouraged to consider the
21 degree to which the program complements existing programs
22 and services for three-year-old, and four-year-old, ~~and~~
23 ~~five-year-old~~ at-risk children available in the area, including
24 other child care and preschool services, services provided
25 through a school district, and services available through an
26 area education agency.

27 Sec. 31. Section 279.51, subsection 3, Code 2025, is amended
28 by striking the subsection.

29 Sec. 32. REPEAL. Section 256A.2, Code 2025, is repealed.

30 DIVISION III

31 DEPARTMENT OF EDUCATION RESPONSIBILITIES

32 Sec. 33. Section 256.9, Code 2025, is amended by adding the
33 following new subsections:

34 NEW SUBSECTION. 69. a. Review and conduct research related
35 to the most effective evidence-based curricula, instructional

1 materials, and evidence-based or promising practices used in
2 prekindergarten programs and in preschools, which shall include
3 a review of the curricula and instructional materials used by
4 prekindergarten programs in this state, preschool programs
5 serving children with individualized education programs, and
6 preschool programs created in accordance with chapters 256A and
7 256C.

8 *b.* Develop and make available on the department's internet
9 site a list of the most effective evidence-based curricula,
10 instructional materials, and evidence-based or promising
11 practices for prekindergarten programs and preschools.

12 NEW SUBSECTION. 70. *a.* Develop a preschool accountability
13 system representing, at minimum, developmental and learning
14 outcomes and continuous implementation of high-quality program
15 standards for school districts offering a prekindergarten
16 program, accredited nonpublic schools offering a
17 prekindergarten program, prekindergarten and preschool programs
18 serving children with individualized education programs, and
19 preschool programs created in accordance with chapters 256A
20 and 256C. The preschool accountability system must utilize,
21 at minimum, data from child performance and growth measures
22 described in section 279.60, continuous improvement activities
23 described in chapters 256A and 256C, and other measures and
24 activities defined by the department.

25 *b.* Provide, in coordination with the department of
26 health and human services, an alignment of an outcomes-based
27 accountability system for school districts offering a
28 prekindergarten program, accredited nonpublic schools offering
29 a prekindergarten program, preschool programs serving children
30 with individualized education programs, and preschool programs
31 created in accordance with chapters 256A and 256C. The
32 outcomes-based accountability system shall take into account
33 the voluntary quality rating system established pursuant to
34 section 237A.30.

35 NEW SUBSECTION. 71. *a.* Review and revise the state early

HF 623.1749 (1) 91

(amending this HF 623 to CONFORM to SF 445)

jda/jh

18/24

1 learning standards and standards related to preschool programs
2 serving children with individualized education programs and
3 preschool programs created in accordance with chapters 256A and
4 256C.

5 **b.** Provide professional development services to school
6 districts offering a prekindergarten program, accredited
7 nonpublic schools offering a prekindergarten program, preschool
8 programs serving children with individualized education
9 programs, and preschool programs created in accordance with
10 chapters 256A and 256C to assist such programs in implementing
11 the revised early learning standards, preschool assessments,
12 high-quality program standards, and standards related to
13 preschool programs.

14 DIVISION IV

15 EARLY CHILDHOOD IOWA INITIATIVE

16 Sec. 34. Section 256I.1, subsection 4, Code 2025, is amended
17 to read as follows:

18 4. *"Early childhood Iowa area"* means a geographic area
19 designated by the department in accordance with [this chapter](#).

20 Sec. 35. Section 256I.4, subsection 3, Code 2025, is amended
21 by striking the subsection.

22 Sec. 36. Section 256I.6, subsection 2, Code 2025, is amended
23 by striking the subsection and inserting in lieu thereof the
24 following:

25 2. The department shall designate early childhood Iowa
26 areas in the same number and using the same geographic
27 boundaries as the behavioral health districts designated by the
28 department pursuant to section 225A.4, as enacted by 2024 Iowa
29 Acts, ch. 1161.

30 Sec. 37. Section 256I.6, subsections 3 and 4, Code 2025, are
31 amended by striking the subsections.

32 Sec. 38. Section 256I.8, subsection 1, Code 2025, is amended
33 by adding the following new paragraph:

34 NEW PARAGRAPH. *h.* Implement evidence-based services that
35 are eligible for funding under the federal Social Security Act,

1 Tit. IV-E.

2 Sec. 39. Section 256I.9, subsection 4, paragraphs a, b, and
3 c, Code 2025, are amended to read as follows:

4 a. A school ready children grant shall be awarded to an
5 area board annually, as funding is available. Receipt of
6 continued funding is subject to submission of the required
7 annual report data and the state board's determination that the
8 area board is making progress, through the use of specific,
9 quantifiable performance measures and locally identified
10 community-wide indicators, toward achieving the desired results
11 and other results identified in the community plan. Each area
12 board shall participate in the ~~designation~~ process to measure
13 the ~~area's~~ area board's success. If the use of performance
14 measures and community-wide indicators does not show that an
15 area board has made progress toward achieving the results
16 identified in the community plan, the state board shall require
17 a plan of corrective action, provide technical assistance,
18 withhold any increase in funding, or withdraw grant funding.

19 b. The state board shall distribute school ready children
20 grant moneys to area boards with approved comprehensive
21 community plans based upon a determination of ~~an early~~
22 ~~childhood Iowa area's designation~~ the success of the area
23 board.

24 c. An area board's ~~designation~~ success shall be determined
25 by evidence of successful collaboration among public and
26 private early care, education, health, and human services
27 interests in the area or a documented program design that
28 supports a strong likelihood of a successful collaboration
29 between these interests.

30 Sec. 40. Section 256I.11, subsection 4, paragraph a, Code
31 2025, is amended to read as follows:

32 a. An early childhood programs grant account is created in
33 the fund under the authority of the director of the department.
34 Moneys credited to the account are appropriated to and shall
35 be distributed by the department in the form of grants to

HF 623.1749 (1) 91

(amending this HF 623 to CONFORM to SF 445)

jda/jh

20/24

1 early childhood Iowa areas that the department determines are
2 eligible pursuant to criteria established by the state board in
3 accordance with law. ~~The criteria shall include but are not~~
4 ~~limited to a requirement that an early childhood Iowa area must~~
5 ~~be designated by the state board in order to be eligible to~~
6 ~~receive an early childhood programs grant.~~

7 Sec. 41. NEW SECTION. 256I.11A Early childhood Iowa
8 initiative — use of funding.

9 The department shall not do any of the following:

10 1. Use state moneys that are appropriated for the early
11 childhood Iowa initiative to supplant existing programs,
12 services, or activities funded by other funding sources.

13 2. Use state moneys appropriated for the early childhood
14 Iowa initiative for child care assistance for an individual
15 who is otherwise eligible for the state child care assistance
16 program established pursuant to section 237A.13, unless
17 the individual provides documentation to the department
18 demonstrating denial of eligibility for the state child care
19 assistance program.

20 Sec. 42. EFFECTIVE DATE. This division of this Act takes
21 effect July 1, 2026.

22 DIVISION V

23 CHILD CARE WORKFORCE — STATE CHILD CARE ASSISTANCE ELIGIBILITY

24 Sec. 43. NEW SECTION. 237A.13A State child care assistance
25 — child care workforce.

26 1. Notwithstanding any provision of section 237A.13 to
27 the contrary, a child shall be eligible for the state child
28 care assistance program under section 237A.13 if a parent,
29 guardian, or custodian meets all of the following requirements,
30 as applicable:

31 a. The parent, guardian, or custodian is employed at a child
32 care facility or child care home that has an agreement with the
33 department to accept reimbursement from the state child care
34 assistance program.

35 b. The parent, guardian, or custodian works in a child

1 care facility or child care home an average minimum of
2 thirty-two hours per week during the month in a position with
3 a primary duty of providing child care directly to children,
4 and is regularly counted in the minimum child-to-staff ratio
5 established by the department by rule.

6 c. If the parent, guardian, or custodian is employed at
7 a child care home or a child development home, the parent,
8 guardian, or custodian does not provide child care to the
9 parent, guardian, or custodian's own child. A co-provider
10 at a child development home may qualify for state child care
11 assistance if the person meets all the requirements specified
12 in this section and by the department by rule.

13 d. The parent, guardian, or custodian is not a substitute or
14 an assistant at a child care home or a child development home.

15 e. Based on the department's evaluation of the parent,
16 guardian, or custodian's application for state child care
17 assistance, the department has determined the parent, guardian,
18 or custodian has a need for child care.

19 f. The parent, guardian, or custodian is not the owner of
20 the child care facility or child care home where the children
21 are enrolled.

22 2. A director, co-director, or other administrative
23 staff member of a child care facility may qualify for state
24 child care assistance pursuant to subsection 1 if such person
25 is regularly counted in the minimum child-to-staff ratio
26 established by the department by rule.

27 3. A person participating in the state child care assistance
28 program pursuant to eligibility established under this section
29 shall make copayments based on the person's household income
30 for services received from the program.

31 4. The department shall adopt rules pursuant to chapter 17A
32 to administer this section.

33 DIVISION VI

34 CHILD CARE CONTINUUM PARTNERSHIP GRANTS — PILOT PROGRAM

35 Sec. 44. Section 256I.11, Code 2025, is amended by adding

HF 623.1749 (1) 91

(amending this HF 623 to CONFORM to SF 445)

1 the following new subsection:

2 NEW SUBSECTION. 6. a. A child care continuum partnership
3 grants pilot program account is created in the fund under the
4 authority of the director of the department. Beginning July 1,
5 2026, the department shall credit not more than eleven million
6 dollars to the account annually. Moneys credited to the
7 account are appropriated to and shall be used by the department
8 to create and administer, in collaboration with early childhood
9 Iowa area boards created pursuant to section 256I.7 and the
10 department of education, a child care continuum partnership
11 grants pilot program.

12 b. (1) On or before November 1, 2025, the department shall
13 publish information on the department's internet site related
14 to the opportunities available under the child care continuum
15 partnership grants pilot program.

16 (2) Beginning July 1, 2026, the child care continuum
17 partnership grants pilot program shall award competitive grants
18 to partnerships between providers of statewide voluntary
19 preschool programming and child care centers licensed pursuant
20 to chapter 237A to provide full-day early childhood education
21 and care programming for participants in the statewide
22 voluntary preschool program created in accordance with chapter
23 256C.

24 c. The department shall maintain discretionary funding
25 for local decision making relating to the early childhood
26 initiative.

27 d. In addition to the appropriation in paragraph "a",
28 beginning July 1, 2025, the department shall credit not
29 more than five million dollars to the child care continuum
30 partnership grants pilot program account from the amounts
31 appropriated to the department pursuant to the portion of
32 2025 Iowa Acts, Senate File 626, that appropriates moneys
33 in the amounts anticipated to be received from the federal
34 government under 42 U.S.C. ch. 105, subch. II-B, or any
35 successor legislation, if enacted. Moneys credited to the

HF 623.1749 (1) 91

(amending this HF 623 to CONFORM to SF 445)

1 account pursuant to this paragraph are appropriated to and
2 shall be used by the department to create and administer, in
3 collaboration with early childhood Iowa area boards created
4 pursuant to section 256I.7 and the department of education, the
5 child care continuum partnership grants pilot program.

6 e. The department shall adopt rules pursuant to chapter 17A
7 as necessary to administer the child care continuum partnership
8 grants pilot program.

9 f. This subsection is repealed July 1, 2029.

10 DIVISION VII

11 EARLY CHILDHOOD IOWA AREA BOARDS — REPORTING

12 Sec. 45. EARLY CHILDHOOD IOWA AREA BOARDS — MONTHLY
13 REPORTING REQUIREMENTS. On a monthly basis beginning July 1,
14 2025, and ending June 30, 2026, each early childhood Iowa area
15 board shall submit a report to the department of health and
16 human services that includes a detailed monetary accounting of
17 the early childhood Iowa area board's expenditures during the
18 preceding month.>

19 2. Title page, by striking lines 1 through 9 and inserting
20 <An Act relating to early childhood education and care,
21 including by modifying provisions related to the statewide
22 preschool program, the child development coordinating council,
23 programs for at-risk children, the responsibilities of the
24 department of education, the early childhood Iowa initiative,
25 and the state child care assistance program, establishing
26 the child care continuum partnership grants pilot program
27 within the department of health and human services, making
28 appropriations and reducing appropriations, and including
29 effective date provisions.>

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